

Amendment No. 1 to HB0874

Farmer
Signature of Sponsor

AMEND Senate Bill No. 535*

House Bill No. 874

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "Tennessee Protection of Children Against Sexual Exploitation Act."

SECTION 2. Tennessee Code Annotated, Title 39, Chapter 17, Part 10, is amended by adding the following as a new section:

(a) A provider of electronic communications service, as defined in § 39-17-308, is prohibited from notifying an account holder, or any other person not authorized to be notified, of the service or the content of a search warrant or subpoena issued to the electronic communications service provider if the search warrant or subpoena was issued in relation to an investigation of the commission of an offense under this part.

(b) Notwithstanding subsection (a), an electronic communications service provider may provide notification to an account holder ninety (90) days after the production of requested information, records, or data from the electronic communications service provider to a law enforcement officer in compliance with a subpoena issued or a search warrant executed and returned. However, the account holder notification shall be further delayed for an additional period not to exceed thirty (30) days upon request of a law enforcement officer within the initial ninety (90) day period established herein.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.